

25STCV33494 25STCV33494

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-21

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DEMURRER WITHOUT MOTION TO STRIKE

The Court tenders the following

tentative decision in the matter Erika Kronk v. 8070 Laurelmont LLC, et al., Los Angeles County Superior Court case number 25STCV33494, set for hearing on September 21, 2026. 8070 Laurelmont LLC and Oliver Thornton (collectively, Defendants) demur to the first cause of action contained in Erika Kronk's (Plaintiff) first amended complaint (FAC). Plaintiff opposes the demurrer. The demurrer is sustained. Plaintiff is granted 20 days' leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (Yalung v. State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal sufficiency, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Esparza v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Quelimane Co. v. Stewart Tit. Guaranty Co. (1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co.

(2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters judicially noticed. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (*Ion Equipment Corporation v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (*Kramer v. Intuit Inc.* (2004) 121 Cal.App.4th 574, 578.)

When a

demurrer is sustained the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendants demur to Plaintiff's first

cause of action for premises liability on the grounds that Plaintiff has not pled sufficient facts and the cause of action is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) The Court previously sustained Defendants' demurrer to the original complaint on the same grounds.

Premises liability is a form of

negligence. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) Thus, a plaintiff must prove the elements of negligence — duty, breach, causation, and damages. (*Kesner v. Superior Court (Pneumo Abex, LLC)* (2016) 1 Cal.5th 1132, 1158.) Plaintiff's first theory regarding Defendants' alleged duty is based on an alleged dangerous condition on their property. An owner of a property has a duty to warn of concealed hazards. (*Rowland v. Christian* (1968) 69 Cal.2d 108, 119.) However, a danger may be so obvious that any person may see it, making the condition itself a warning and placing

no further duty on the defendant. (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 673.)

Here, Plaintiff alleges that Defendants owned and possessed the relevant property on which Plaintiff was injured. (FAC ¶ 10.) Plaintiff alleges that Defendants organized a party with food, alcohol, and other drugs. (Id. ¶ 11.) She alleges that she was seated on a pool bench beneath the jacuzzi when Defendant Evan Nigh fell or jumped from the ledge of the jacuzzi, landing on Plaintiff and injuring her. (Id. ¶ 15.) Plaintiff alleges that the design of the pool and jacuzzi created an unreasonable and foreseeable risk of harm that individuals would jump or fall from the jacuzzi and strike others below. (Id. ¶ 20.) The pool and jacuzzi lacked any barriers, signs, or warnings about this danger. (Id. ¶ 21.) However, Plaintiff does not allege that the relevant hazard was hidden from view. And Plaintiff emphasizes that the danger to her person arose from physical horseplay by Nigh along the jacuzzi ledge and Defendants' failure to stop his reckless conduct. (Id. ¶¶ 17–18.) Thus, Plaintiff does not allege that the pool was dangerous due to its design, but rather because of the behavior of others at the party.

Second, Plaintiff argues that Defendants engaged in active negligent conduct as described in *Hansen v. Richey* (1965) 237 Cal.App.2d 475. There, the Court of Appeal held that the defendants could have engaged in negligent conduct by sponsoring a party on their property attended by over 100 youths who were unfamiliar with the premises. (Id. at p. 480.) It noted that the defendants could be expected to recognize that some of the youthful guests might display “flighty and immature inclinations.” (Ibid.) Defendants failed to prevent removal of barriers at the party which allowed individuals to access the pool area. (Ibid.) The pool was mostly empty, except for part of the deep end which had collected rainwater. (Id. at p. 476.) The plaintiff had fallen in the pool, sustained a skull fracture and drowned. (Ibid.)

Hansen does not support a finding that Defendants owed a duty in the present case. The hazard present in Hansen was much greater than that alleged here. Additionally, while the Court of Appeal noted that an expectation of “flighty and immature inclinations” by house guests might support a finding of a duty owed by the defendants, such an expectation arose from their youth. Here, the same expectation would need to be grounded in the potential use of intoxicants by guests. (FAC ¶ 11.) Yet “no

social host who furnishes alcoholic beverages to any person may be held legally accountable for damages suffered by that person, or for injury to the person or property of, or death of, any third person, resulting from the consumption of those beverages.” (Id., § 1714, subd. (c).) Thus, section 1714 does not support a finding of duty in this case. Accordingly, Defendants’ demurrer is sustained.

C.

Conclusion

Defendants’

demurrer is sustained. Plaintiff is granted 20 days’ leave to amend.